

12.	26CV0764	MARY ASTOR SMITHE VS. EDIB ZILDZO ET AL
MOTION FOR REFUND OF FILING FEES AND SANCTIONS		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 11, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 21, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

On June 22, 2026, Plaintiff, Mary Astor Smithe ("Plaintiff"), filed a Motion for Refund of Filing Fees and Sanctions. Plaintiff alleges that despite being granted a fee waiver by this Court, Plaintiff has been charged filing fees. Plaintiff seeks a full refund and sanctions against Legal Document Server, Inc., a non-party, in an amount the Court deems just. On July 6, 2026, Plaintiff filed a Request to Decide Motion on the Papers and to Vacate August 21, 2026 Hearing.

On March 18, 2026, Plaintiff filed a Complaint. Subsequently, Plaintiff filed a fee waiver on March 23, 2026, which was granted.

Pursuant to Government Code § 68630 et seq, the Legislature expressly declared that those who are able to pay court fees should do so, and that courts should be allowed to recover previously waived fees if a litigant has obtained a judgment or substantial settlement. This legislative policy reflects a forward-looking waiver system which is designed to remove financial barriers going forward, not to retroactively undo fees already paid.

Likewise, California Rules of Court, Rule 3.55 specifies the court fees and costs that must be waived upon granting an application for an initial fee waiver, and California Rules of Court, Rule 3.56 addresses additional court fees and costs that may be waived upon granting an application for an initial fee waiver, either at the outset or upon later application. Neither rule provides for a retroactive application or basis for refund of fees already paid prior to the waiver's approval.

As a non-party, the Court does not have jurisdiction to sanction Legal Document Server, Inc. Moreover, there is no Proof of Service on file indicating service was effectuated.

TENTATIVE RULING #12:

PLAINTIFF'S MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY

August 21, 2026
Dept. 9
Civil Tentative Rulings

4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.